

§ 428. Issuance of warrant; certificate of warrant. (a) The court may issue a warrant, directing that the respondent be arrested, brought before the court, when a petition is presented to the court under section four hundred twenty-three and it appears that

- (i) the summons cannot be served, or
- (ii) the respondent has failed to obey the summons; or
- (iii) the respondent is likely to leave the jurisdiction; or
- (iv) a summons, in the court's opinion, would be ineffectual; or
- (v) the safety of the petitioner is endangered; or
- (vi) a respondent on bail or on parole has failed to appear.

(b) The petitioner may not serve a warrant upon the respondent, unless the court itself grants such permission upon the application of the petitioner. The clerk of the court may issue to the petitioner or to the representative of an incorporated charitable or philanthropic society having a legitimate interest in the family a certificate stating that a warrant for the respondent has been issued by the court. The presentation of such certificate by said petitioner or representative to any peace officer, acting pursuant to his special duties, or police officer authorizes him to arrest the respondent and take him to court.

(c) A certificate of warrant expires ninety days from the date of issue but may be renewed from time to time by the clerk of the court.

(d) Rules of court shall provide that a record of all unserved warrants be kept and that periodic reports concerning unserved warrants be made.